

# STATE OF NEW YORK

9486--B

## IN SENATE

March 17, 2026

Introduced by Sen. KAVANAGH -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to notification to local law enforcement of firearm denials

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 2 of section 228 of the executive law, as added by chapter 371 of the laws of 2022, is amended and a  
2 new subdivision 2-a is added to read as follows:

3 (a) The division shall report the name, date of birth and physical  
4 description of any person prohibited from possessing a firearm pursuant  
5 to 18 U.S.C. sec. 922(g) or (n), and the reason for any denial, to the  
6 national instant criminal background check system index, denied persons  
7 files.

8 2-a. (a) Within two business days of making the report described in  
9 paragraph (a) of subdivision two of this section, the division shall  
10 report the name, date of birth, physical description, and the reason for  
11 the denial to:

12 i. the local law enforcement agency having jurisdiction over the  
13 location where the prohibited person sought to acquire the firearm; and

14 ii. the local prosecutor having jurisdiction over the location wherein  
15 the prohibited person sought to acquire the firearm.

16 (b) The local law enforcement agency shall initiate a criminal inves-  
17 tigation within five business days of receiving such report from the  
18 division.

19 § 2. This act shall take effect on the sixtieth day after it shall  
20 have become a law.  
21

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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